

**JUDGMENT SHEET
IN THE LAHORE HIGH COURT, BAHAWALPUR BENCH,
BAHAWALPUR
JUDICIAL DEPARTMENT**

Civil Revision No.61 of 2016/BWP

Mst. Namoo Bibi widow of Allah Bachaya (deceased) & others

Versus

Sardar Allah Yar Hiraj (deceased) through legal heirs & others

J U D G M E N T

Date of hearing: 29.03.2021.

Petitioners by: M/s. Faiz-ul-Hassan and A.R. Aurangzeb,
Advocates.

Respondents by: C.M. Sarwar and Ch. Muhammad Shafi Mayo,
Advocates (respondents No.1 to 9).
Jam Abdul Maalik, Assistant Advocate General
(respondents No.10 & 11).

MUHAMMAD SAJID MEHMOOD SETHI, J.- Through instant revision petition, petitioners have challenged the vires of judgments and decrees dated 06.04.2011 and 15.12.2015, passed by learned Civil Judge Ist Class and Additional District Judge, Bahawalpur, whereby suit for declaration, filed by respondents No.1 to 8, was decreed concurrently.

2. Brief facts of the case are that respondents No.1 to 8 filed a suit for declaration to the effect that they along with respondent No.9 were owners of suit property, detailed in headnote of plaint, as per *Jamabandi* for the year 1930-31; that petitioners had no concern whatsoever with the suit property; and sought that mutation No.307 dated 21.05.1961 & order dated 25.03.1961, issued by Collector Bahawalpur, showing predecessors of petitioners as occupants of suit property, be declared illegal, void and ineffective upon their rights. The suit was contested by petitioners by filing written statements. After framing issues, recording evidence and hearing

arguments from both sides, learned Trial Court decreed the suit vide judgment and decree dated 06.04.2011. Feeling aggrieved, petitioners filed appeal before learned Additional District Judge, which was dismissed vide judgment and decree dated 15.12.2015. Hence, instant revision petition.

3. Learned counsel for petitioners submits that impugned judgments and decrees are against law, facts and based upon misreading and non-reading of evidence brought on record. He adds that two different suits regarding different *Mauzas* & mutations were filed wherein distinct issues were framed and were tried separately, however, while recording reasons learned Trial Court committed grave negligence and error while verbatim reproducing findings of one suit in the other suit, which has caused prejudice to petitioners. He adds that evidence recorded in one suit could not have been copied in other suit, which being against the spirit of Order XVIII Rules 8 & 14 C.P.C., is unlawful. He contends that certified copies of statements of PWs in one case, without exhibiting the same, were allowed to be made part of other suit, hence, the same cannot be considered as valid piece of evidence and relied upon while pronouncing the judgment because such practice would defeat the purpose of recording evidence. He contends that above material defects were pointed out before learned Appellate Court but same were not attended to while deciding the appeal. He maintains that a past and closed transaction dated 21.05.1961 could not have been assailed in the year 1994, after expiry of prescribed limitation and even a void order has to be assailed within the period of limitation. He further submits that it is well settled that when a person had waived his right during his lifetime then his legal heirs are estopped to challenge the same after decades. He maintains that respondent No.9 remained posted at Bahawalpur as ADC (G) in 1980, however, he never agitated the matter in the capacity of successor of deceased owners. He contends that respondents have failed to establish any link of inheritance with predecessors of

petitioners and the pedigree table was not relating to *Mauzas* in question rather related to Chak No.13/9R, Tehsil Khanewal. He argues that power of attorney was also forged and fictitious as no stamp along with name of scribe was available at the back of stamp paper and even record of stamp paper was not produced in evidence, even otherwise, the power of attorney lost its efficacy after the death of Allah Yar as his legal heirs never signed said document. In the end, he submits that material legal and factual aspects of the matter have been overlooked by learned Courts below, hence, impugned judgments and decrees are unsustainable in the eye of law. He has referred to *Maqbool Ahmad v. Government of Pakistan* (1991 SCMR 2063), *Abdul Haq and another v. Mst. Surrya Begum and others* (2002 SCMR 1330), *Muhammad Hussain and others v. Wahid Bakhsh (deceased) through Legal Heirs* (2004 SCMR 1137), *Muhammad Zubair and others v. Muhammad Sharif* (2005 SCMR 1217), *Muhammad Rafique and others v. Muhammad Ramzan and others* (2007 SCMR 540), *Iqbal Ahmed v. Managing Director Provincial Urban Development Board, N.-W.F.P. Peshawar and others* (2015 SCMR 799), *Nazim-ud-Din and others v. Sheikh Zia-ul-Qamar and others* (2016 SCMR 24), *Ghulam Abbas and others v. Mohammad Shafi through LRs and others* (2016 SCMR 1403), *Malik Bahadur Sher Khan v. Haji Shah Alam and others* (2017 SCMR 902), *Haji Wajdad v. Provincial Government through Secretary Board of Revenue Government of Balochistan, Quetta and others* (2020 SCMR 2046), *Munir Hussain v. Mst. Mehrun Nisa (through her legal heirs)* (PLD 1982 Karachi 71), *Mst. Nangti v. Mst. Noori and others* (1995 CLC 2100), *Mst. Jameela Khatoon and 4 others v. Sattar Brig and 2 others* (1997 CLC 1691), *Nazir Ahmad v. Mst. Ghazala Bashir* (2001 CLC 468), *Mushtaq Ahmed and 4 others v. Custodian, Evacuee Property, Azad Jammu and Kashmir, Muzaffarabad* (2004 MLD 451), *Shero v. Muhammad Ramzan and 2 others* (2006 YLR 2632), *Ghulam Mustafa and another v. Abdul*

Malik (PLD 2008 Lahore 4), Syed Zaidi Hassan Shah v. Faiz-ur-Rehman Shah (2011 CLC 205), Ghazi Khan and others v. Aziz-ur-Rehman (2017 CLC 366), Atta Muhammad through L.Rs. and others v. Muhammad Khan and others (2018 MLD 1524), Muzaffar Hussain v. Mst. Bivi and 7 others (PLD 2020 Lahore 12), Mst. Fatima and 2 others v. Najeeb Ullah and another (2020 CLC 780) and judgment dated 23.09.2020, passed in **Civil Revision No.699-D of 2012** titled Muhammad Shafiq v. Muhammad Yasin.

4. Conversely, learned counsel for respondents No.1 to 9, assisted by learned Law Officer, defends the impugned judgments and decrees and submits that learned counsel for petitioners has failed to point out any illegality or legal infirmity in the same, which are liable to be upheld. He submits that petitioners were in illegal possession over the suit property and it was owned by predecessor of respondents and impugned mutation was got sanctioned through fraud, misrepresentation and connivance of revenue staff. He adds that respondents as well as their forefathers had duly been shown as owners in possession of suit land in the revenue record and petitioners have no constant possession over the suit land. He argues that petitioners have failed to prove their adverse possession as owners and even otherwise law of adverse possession has been declared as illegal and against Injunctions of Islam by Hon'ble Apex Court. He maintains that petitioners have also failed to prove their case of having purchased the suit land through any cogent and confidence inspiring evidence. He submits that oral as well as documentary evidence brought on record has rightly been appreciated by learned Courts below, hence, impugned concurrent judgments and decrees are liable to be upheld. He has referred to Muhammad Aslam and another v. Imam Bakhsh and 2 others (1980 SCMR 879), Maqbool Ahmad v. Government of Pakistan (1991 SCMR 2063), Haji Muhammad Din v. Malik Muhammad Abdullah (PLD 1994 Supreme Court 291), Muhammad Feroze and others v. Muhammad Jamaat Ali (2006

SCMR 1304), Rashid Ahmad v. Said Ahmad (2007 SCMR 926), Asmatullah v. Amant Ullah through Legal Representatives (PLD 2008 Supreme Court 155), Noor Muhammad and others v. Mst. Azmat-e-Bibi (2012 SCMR 1373), Ali Muhammad v. Nazir etc. (PLD 1980 Lahore 52), Khushi Muhammad v. Muhammad Yousaf (2008 YLR 362) and Muhammad Sanawar Khan v. Akhtar Khan and 2 others (2015 CLC 1253).

5. Heard. Available record perused.

6. The land measuring 119 Kanals 11 Marlas situated in *Maouza Chang*, Tehsil Ahmedpur East is the subject matter of instant revision petition and mutation No.307 dated 21.05.1961 sanctioned in favour of petitioners was under attack in the suit instituted by respondents. The stance of petitioners is that they had been in possession of the suit property for more than 12-years before attestation of aforesaid mutation and the same was sanctioned in their favour having the adverse possession. Perusal of Records of Rights (Exh.P-12 to Exh.P-16) clearly show Wali Muhammad s/o of Bahadur Khan and Nadir Ali s/o Murad Khan as owners in possession of the disputed land from 1930 to 1954 whereas petitioners are not equipped with any document from revenue record to establish that they were in continuous possession of the suit property from 1946 to 1960 and mutation in question was lawfully sanctioned in their favour on the basis of their continuous possession. Moreover, adverse possession, no matter how lengthy it would be, cannot extinguish the ownership right of original owner and make the possessor as owner, as enunciated by Shariat Appellate Bench of Hon'ble Apex Court in the case of Maqbool Ahmad, supra.

7. Record shows that while concluding proceedings of impugned mutation, a proclamation (Exh.D.1) was floated in newspaper but the same did not mention complete addresses of said Wali Muhammad and Nadir Ali. Moreover, said proclamation was published on 21.10.1960, however, as per death certificate, Wali

Muhammad died on 25.11.1959, thus, it can safely be held that proper service of notice was not effected upon the owners, which has rendered the impugned mutation unsustainable in the eye of law.

8. There is another plea of petitioners that they had purchased the suit land against consideration of Rs.14,000/-, but they have not specifically provided the particulars of the alleged transaction i.e. date, time and terms of the sale agreement in the suit as well as in any of the mutations. Petitioners did not opt to file any suit for specific performance on the basis of alleged sale agreement, hence, this plea being not supported by any cogent evidence, is not substantiated. Even otherwise, in presence of pleas of lawful title / ownership and adverse possession over the suit land since 1946 to 1960, the plea of purchase of suit land, being contradictory, inconsistent and self-destructive, cannot stand together. Reference can be made to Khuda Bakhsh and others v. Mureed and others (1999 SCMR 996), Syed Yousif Ali through L.Rs. v. Muhammad Hasham through L.Rs. and others (2006 SCMR 830), Essa and others v. Saddiq Ali and others (PLD 2003 Karachi 700), Industrial Development Bank of Pakistan v. Messrs ZAMCO (Pvt.) Limited and 9 others (2005 CLD 836), Fauji Sugar Mills through General Manager v. Mehmood Ahmed (2006 PLC 630) and Industrial Development Bank of Pakistan, Karachi v. Messrs ZAMCO (Pvt.) Ltd. and 10 others (2007 CLD 217).

9. So far as objection of transportation of evidence in one suit to the other suit is concerned, it suffices to say that said measure was adopted with the consent and presence of learned counsel for the parties, in order to save time as the suit had been pending since 1994. Moreover, respondents filed an appropriate application in this regard, which was accepted by learned trial court as per law. Even otherwise, said mode was not objected to or challenged by petitioners before any higher forum, thus, they are estopped to raise such objection at this belated stage. Reference can be made to

Salehon Muhammad and another v. Allah Yar (1989 SCMR 540) and Muhammad Sanawar Khan v. Akhtar Khan and 2 others (2015 CLC 1253).

10. As regards the question of limitation in filing the suit, it is the stance of respondents that Hussain Bakhsh, predecessor of petitioners No.14 to 16 was tenant over the suit land and his brother namely Allah Bachaya, predecessor of petitioners No.1 to 13, was *Patwari*, however, respondents were residing far away from the land in question; that after consolidation of *Mauza* in question, respondents obtained copies from revenue record and it transpired that they have been declared as *ghair qabaz* and petitioners had been shown as occupants, by relying upon the impugned mutation; that petitioners had also refused to grant them their share of produce in the year 1993 and also denied their ownership over the suit land lastly before 15-days from institution of the suit. It is well settled that each entry in the revenue record gives a fresh cause of action to an aggrieved person and adverse entries in the revenue record even if allowed to remain unchallenged do not have the effect of extinguishing the rights of a party against whom such entries had been made. In addition, any transaction / document which is the result of fraud or misrepresentation can neither be perpetuated nor can it be protected on the ground of expiry of the period of limitation, whenever such transaction is assailed in a Court of law. Every new entry in the revenue record on the basis of fraudulent instrument would give rise to a fresh cause of action. Reference can be made to Khan Muhammad through L.Rs and others v. Mst. Khatoon Bibi and others (2017 SCMR 1476), Muhammad Yaqoob v. Mst. Sardaran Bibi and others (PLD 2020 Supreme Court 338), Muhammad Younas and another v. Ghazanfar Abbas and 12 others (2017 YLR 2229) and Muhammad Amin through Legal Heirs and 2 others v. Mst. Ashraf Bibi through Legal Heirs and another (2018 YLR 2524).

11. There are concurrent findings of learned Courts below, which are based upon proper appreciation of available material / evidence and cannot be disturbed in routine in exercise of revisional jurisdiction, especially when no illegality, material irregularity or jurisdictional defect has been pointed out by petitioners.

12. In view of the above, instant revision petition, being devoid of any merit, is hereby **dismissed**. No order as to costs.

(Muhammad Sajid Mehmood Sethi)
Judge

Sultan